

Philosophy student at UC Berkeley, "Plea to Prison Pipeline: Assessing the Feasibility of Mass Plea Refusal", 10/3/19, Berkeley Political Review, <https://bpr.berkeley.edu/2019/10/03/plea-to-prison-pipeline-assessing-the-feasibility-of-mass-plea-refusal/>

In response, prominent legal scholars such as Michelle Alexander and Brady Heiner have advocated for mass plea refusal, where public defenders reject plea deals and push their cases to court. **This proposed solution rests upon the assumption that if every case was taken to trial, the criminal justice system would be forced to bear the real cost of over policing, charge-stacking and mass misdemeanor processing.** Simply put: **the system would grind to a halt under its own weight.** The purported result? Broad criminal justice reform targeting the sources of mass incarceration. Though seemingly outlandish, **there is a strong evidentiary consensus that a mass plea refusal would successfully overwhelm the system. Because over 90 percent of cases are resolved through plea bargains, there simply does not exist the requisite number of public defenders, courts or police departments to try every case that it charged.** The question then is not: is a crash of the system possible? Rather, what is the most likely outcome of the crash? It's unclear why the same decision-making bodies responsible for mass incarceration would respond to increased judicial backlog with drug legalization and decarceration instead of a proportionate expansion in prison and court facilities. Heiner attempts to answer this objection in his essay: "The procedural entrapment of mass incarceration: prosecution, race and the unfinished project of American abolition." He argues that public reinvestment in mass incarceration is 'politically unlikely.' He claims that because state and municipalities already apportion substantial funds to corrections and law enforcement in order to address overcrowding in state prisons, the electorate is likely to reject any further bankrolling of the prison industrial complex. However, Heiner seems to neglect the possibility that **private prisons, unconstrained by state budgets and public resistance, capitalize on the surge of defendants in need of prison cells.** Although private prisons account for a small overall percentage of the country's prison population, they have grown at a disproportionate rate in the past few decades, with an astounding 1600 percent increase in their populations from 1990 to 2005. **The shift to private prisons would not only circumvent the need for progressive criminal justice reform, it would also result in worse prison conditions for inmates.**